

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1837

By: Hefner

AS INTRODUCED

An Act relating to poor persons; amending 56 O.S. 2021, Section 4001.5, Achieving a Better Life Experience Program account; adding an exemption; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 56 O.S. 2021, Section 4001.5, is amended to read as follows:

Section 4001.5. A. Account balances and distributions from savings accounts established pursuant to this act shall be exempt from levy and sale, garnishment, attachment or any other process whatsoever and shall be unassignable. In the event of the death of a beneficiary, the funds from an Achieving a Better Life Experience (ABLE) account are also exempt from Medicaid recovery liens, claim, and other reimbursement proceedings filed pursuant to Section 12-994.2 of Title 12 of the Oklahoma Statutes by the Oklahoma Health Care Authority.

1 B. Money and assets residing in an account established pursuant
2 to this act or residing in an ABLE account established in another
3 state shall not be considered for purposes of determining
4 eligibility for assistance or benefits or for determining the amount
5 of assistance or benefits to be received from the Temporary
6 Assistance for Needy Families program or from any other local or
7 state means-tested public assistance programs.

8 SECTION 2. This act shall become effective November 1, 2025.

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